

IN THE SUPREME COURT OF BANGLADESH

HIGH COURT DIVISION

(CIVIL REVISIONAL JURISDICTION)

Civil Revision No. 196 of 2023

In the matter of:

An Application under section 115(4) of the Code of Civil Procedure, 1908

And

In the matter of:

Present
Mr. Justice Mamnoon Rahman

Md. Miaz Uddin and another.

...Petitioners.

-Vs-

Rashida Khandakar and others.

...Opposite parties.

Mr. Md. Jakir Hossain, Adv. with

Mr. Abdul Jalil, Adv.

...For the petitioners.

Mr. Abdur Rezzaque Khan, Sr. Adv.

...For the opposite parties.

Heard on: **16.11.2023**

And

Judgment on: **The 3rd December, 2023**

In an application under section 115(4) of the Code of Civil Procedure, 1908 rule was issued calling upon the opposite party No. 01 to show cause as to why the judgment and order dated 17.11.2022 passed by the learned Additional District Judge, 1st Court, Dhaka passed in Civil Revision Case No. 39 of 2019 rejecting the civil revision thereby affirming the judgment and order No. 131 dated 26.02.2019 passed by the learned Senior Assistant Judge, Savar Adalat, Dhaka in Pre-emption Miscellaneous Case No. 01 of 1996 rejecting the application for appointing an advocate commissioner to submit a report to assess the development cost and partially review the Pre-emption Miscellaneous Case No. 01 of 1996 under Order 47 Rule 1 and Order

26 Rule 9 read with section 151 of the Code of Civil Procedure for partial review of judgment and order, should not be set aside and/or such other or further order or orders as to this Court may seem fit and proper.

It appears that at the time of issuance of rule this court stayed the operation of the impugned judgment and order dated 17.11.2022 passed by the learned Additional District Judge, 1st Court, Dhaka in Civil Revision No. 39 of 2019 rejecting the civil revision thereby affirming the judgment and order No. 131 dated 26.02.2019 passed by the learned Senior Assistant Judge, Savar Adalat, Dhaka in Pre-emption Miscellaneous Case No. 01 of 1996 and also directed the parties to maintain status-quo in respect of possession of the suit land.

The short facts relevant for the disposal of the rule, is that, the petitioner filed an application for partial reviewing the judgment and order passed by the trial court dated 30.09.1998 passed in Miscellaneous Case No. 1 of 1996 of with an application under section 5 of the Limitation Act for condonation of delay of twenty years three months and twenty six days for considering the development cost in the case property. The trial court proceeded with the miscellaneous case and vide the judgment and order dated 26.02.2019 rejected the same. Being aggrieved and dissatisfied with the said order the petitioner moved before the District Judge, Dhaka by way of Civil Revision No. 39 of 2019 and the same was heard and disposed of by the Additional District Judge, 1st Court, Dhaka who vide the judgment and order dated

17.11.2022 rejected the revision and thereby affirmed the judgment and order passed by the trial court dated 26.02.2019. Being aggrieved and dissatisfied with the aforesaid judgment and order the present petitioner moved before this court and obtained the present rule.

Mr. Md. Jakir Hossain, the learned Advocate appearing on behalf of the petitioner submits that the court below without applying their judicial mind and without considering the facts and circumstances materials on record and evidence led by the petitioner most illegally and in an arbitrary manner rejected the application for review which requires interference by this court. He submits that in the trial court by way of review the petitioner adduced sufficient evidence to show their development in detailed which ought to have examined and considered by the trial court as much as the trial court as well as lower revisional court ought to have allowed the same for ends of justice.

Mr. Abdur Rezzaque Khan, the learned Senior Advocate for the opposite party vehemently opposes the rule. He submits that the courts below on meticulous perusal of the papers and documents contention as raised by the present petitioner has rightly turned down the *plea* for review and as such the court in the present case in hand committed no error which requires interference by this court. The learned Senior counsel submits that there is a wrong history of the present case in hand started in the year 1996 and the present petitioner travelled different courts with the different *pleas* and try to reopen the issue settled by

their lordships of our apex court in two occasions and as such the instant rule is liable to be discharged with cost.

I have heard the learned Advocates for the petitioners as well as opposite parties. I have perused the impugned judgment and order passed by the trial court as well as judgment and order passed by the revisional court, revisional application, grounds taken thereon, necessary papers and documents annexed herewith as well as the application for discharging the rule filed by the opposite parties.

On perusal of the same, it transpires that the present opposite party as pre-emptor filed Miscellaneous Case being No. 01 of 1996 in the court of Assistant Judge, Dhaka for pre-emption of the property in question impleading the present petitioners as opposite parties. The trial court after hearing the parties and considering the facts and circumstances, evidence both oral and documentary dismissed the miscellaneous case vide judgment and order dated 30.09.1998. Against which the present opposite parties as appellants preferred Miscellaneous Appeal being No. 290 of 1998 before the lower appellate court and the lower appellate court vide judgment and order dated 14.06.2000 allowed the appeal, set aside the judgment and order passed by the trial court and thereby allowed the case of the pre-emption filed by the opposite party petitioners. The present opposite party preferred Civil Revision being No. 1976 of 2001 before the High Court Division and the High Court Division after hearing the parties and considering the facts and circumstances vide judgment and order

dated 04.02.2008 discharged the rule. The present petitioners being aggrieved by and dissatisfied with the aforesaid judgment and order passed by the High Court Division preferred Civil Petition for Leave to Appeal being No. 862 of 2008 before their lordships of our apex court and their lordships vide judgment and order dated 21.05.2005 dismissed the same. It transpires that the present petitioner thereafter filed an independent suit being Title Suit No. 218 of 2010 in the court of Joint District Judge, 2nd Court, Dhaka for the following reliefs;

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It further transpires that considering the facts and circumstances, materials on record, the trial court rejected the said plaint. Being aggrieved by and dissatisfied with the aforesaid judgment and order passed by the trial court the present petitioners preferred First Appeal being No. 179 of 2010 before the High Court Division and the High Court Division as the court of appeal by the judgment and order dated 16th April, 2013 allowed the appeal and set aside the judgment and decree passed by the trial court with a direction upon the trial court to proceed with the suit in accordance with law and to frame an issue as to

the maintainability of the suit. Being aggrieved by and dissatisfied with the aforesaid judgment and order the present opposite party preferred Civil Petition for Leave to Appeal being No. 2198 of 2013 before their lordships of our apex court. Their lordships of court apex court vide the judgment and order dated 29th February, 2016 set aside the judgment and decree passed by the High Court Division and affirmed the judgment and order passed by the trial court rejecting the plaint. Against which the present petitioner preferred Civil Review being No. 358 of 2016 and the same was heard and disposed of by their lordships of our apex court wherein their lordships vide the judgment and order dated 6th December, 2018 dismissed the review petition.

It transpires that subsequently the present petitioner pressed an application under Order 47 rule 1 read with section 26 rule 9 with section 151 of the Code of Civil Procedure, 1908 with partial review of the judgment and order passed in the original pre-emption case. The main contention as raised by the petitioner in the said review petition that the court below did not consider the question of development cost as much as the said application barred by 20 years 3 months and 26 days. The trial court rejected the same and the revisional court also affirmed the same.

On meticulous perusal of the aforesaid papers and documents, it transpires that the trial court rejected the application on the ground that the review application is hopelessly barred by limitation as much as with a clear finding that the question of development cost was

considered by the trial court, lower appellate court, revisional court the High Court Division and as such there is no scope to reconsider the same. The revisional court also came to a conclusion that the same question has been raised and decided in the lower appellate court in the original appeal.

It is crystal clear that this is a case for pre-emption filed by the present opposite parties to exercise and invoke the right of pre-emption as prescribed by law. Admittedly, the pre-emption case was dismissed but on appeal the lower appellate court allowed the pre-emption. The same was maintained up to the highest judiciary of the country. It also transpires that the present petitioners also tried to invoke the jurisdiction of the civil court by filing an independent suit as mentioned hereinabove and the trial court rejected the plaint. Against which appeal was preferred and the High Court Division allowed the appeal but ultimately on appeal their lordships of our apex court came to a conclusion which runs as follows;

In the pre-emption miscellaneous case under section 96 of the Act the right of pre-emption of the pre-emptor having been declared that right cannot be circumvented by another legal proceeding as sought by the pre-emptee-plaintiff by filing the instant suit. And if such recourse by a losing party in a pre-emption application is given judicial recognition in a roundabout way, it shall create havoc in the administration of civil justice delivery system. But the

High Court Division failed to comprehend this simple legal position. The High Court Division also failed to consider that the relief sought in the suit was not contemplated within the four corners of section 42 of the Specific Relief Act. The High Court Division also failed to see the apparent malafide on the part of the pre-emptee plaintiff in bringing the suit just to prolong the execution of the order of pre-emption made in favour of the defendant pre-emptor.

In view of the above, we are constrained to hold that the High Court Division was absolutely wrong in passing the impugned judgment and decree interfering with the decree of the trial Court which rejected the plaint and as such, the impugned judgment and order cannot be sustained and that must be set aside.

Since we have heard the learned Advocates of both the parties and we find prima-facie illegality in the impugned judgment and decree of the High Court Division, we are not inclined to give leave in the matter, as that would in effect shall keep the process of execution of the order of pre-emption made in favour of the pre-emptor-defendant at bay and we, therefore, consider it just and proper and commensurate to justice to dispose the petition summarily interfering with the impugned judgment and decree.

Accordingly, this petition is disposed of summarily in the following terms:

The impugned judgment and decree of the High Court Division is set aside and those of the trial Court is restored.

It further transpires that at the time of dealing the main pre-emption case and the question of development the High Court Division in Civil Revision No. 1976 of 2001 held as follows;

Second point raised for development cost has also been considered by the learned Judge of the Appellate Court as well. The purchaser opposite parties could not prove any specific case of development. However, a cost Tk. 1800/- which was paid to obtain approval on the Cantonment Board appears to have been allowed in the right direction and the purchaser opposite parties are legally entitled to get this amount from the preemptor. Moreover, when the purchaser opposite parties have failed to make out the case of refusal to A purchase, they appear to have erected dwelling huts on the case land during the subsistence of preemption right of the co-sharers at their own risk and as such the preemptor is not liable to bear the cost for erecting huts.

So, it is crystal clear that the question of development cost has been raised and settled up to their lordships of our apex court and there

is no scope for any further interference in any manner. The question of pre-emption as well as the development cost has been finally settled by the court of law in different occasions. The present litigation is in my view is an abuse and affecting the administration of justice vigorously and as such the instant rule liable to be discharged with cost.

Accordingly, the instant rule is discharged with cost of Tk. 1,00,000/-(One lac) and the interim order passed by this court is hereby vacated. The impugned judgment and order passed by the court below is hereby affirmed. The petitioner is directed to pay the cost of Tk. 1,00,000/-(One lac) to the opposite party within 1(one) month from the date of receipt of the instant judgment and order without fail. However, the trial court is directed to hear and dispose of the execution case within 60(sixty) days strictly on merit in accordance with law.

Communicate the judgment and order to the concerned court below with a copy of the judgment at once.

(Mamnoon Rahman,J:)

Emdad. B.O.